

The complaint

Mrs V complains that Aviva Insurance Limited declined a claim made against her buildings insurance policy.

What happened

Mrs V said following a storm in February 2020 the boundary wall to the rear of her property collapsed. Mrs V said her garden sloped and the collapse of the wall blocked the footpath behind the wall.

Mrs V said she was first advised to seek legal advice about the ownership of the collapsed wall. But was later told to claim for the damage on her building's insurance. Mrs V made a claim on her policy and Aviva arranged for the damage to be inspected by a structural engineer. Aviva declined her claim after considering the structural engineer's report, they said the damage wasn't a single event – storm damage. They said the damage was caused by a gradual deterioration, excluded under her policy. Mrs V complained to Aviva.

Aviva said while storm damage was covered under Mrs V's policy, but the damage to the wall was considered to have happened over time. The pictures of the wall were considered, and these showed evidence that the wall was bowed and cracked.

Mrs V wasn't happy with Aviva's response and referred her complaint to us.

Our investigator said he hadn't seen evidence of a one-off event causing the damage to the wall. And said that Aviva had applied the policy terms correctly.

Mrs V didn't agree and asked for an ombudsman to decide.

What I've decided – and why

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint.

Having done so I'm not upholding this complaint. I'll explain why.

As with all insurance, Mrs V's policy includes conditions about what is and isn't covered. Mrs V has claimed for damage to a boundary wall. But there are two walls at the rear of Mrs V's garden. One that I think is the boundary wall and the other a retaining wall that is of a more recent construction. The retaining wall is a mix of stone, brick and concrete block. The wall had collapsed into the footpath at the rear of the property. Mrs V in her claim to Aviva said this was caused by a storm.

When deciding on whether Aviva has acted fairly and reasonably in declining Mrs V's claim, I need to determine whether they've applied the terms of the policy correctly.

Mrs V claimed the collapse was due to storm damage which is covered under the policy terms. But I can see there is also an exclusion under the policy terms for storm damage for when the damage has happened gradually.

When considering a storm damage complaint, I'd look at whether there were storm conditions at the time, is the damage consistent with damage a storm typically causes and were the storm conditions the main cause of the damage.

storm conditions at the time

Mrs V is unsure of the exact date when the wall was damaged but has said that Storm Dennis happened around the time in February 2020. I can see that Storm Dennis happened between 13 and 19 February 2020. With a peak wind gust of 70 miles per hour on 16 February 2020. I'd consider a storm to be more than 47 miles per hour, so I think storm conditions did happen around the time Mrs V said the wall collapsed.

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Typical damage caused by a storm can for example include the dislodging of brickwork, broken branches, tiles lifting. So, I've considered the damage caused to both the walls detailed in the structural engineer's report.

The report shows the boundary wall is at the rear of Mrs V's garden at the top of an embankment and says that it was difficult to see the boundary wall behind the collapsed retaining wall. The report says the boundary wall turns at the bottom of the garden with parts of the wall hidden from view as its obscured by a hedge. The report also says it appears to be a "DIY stone wall". From the pictures I can see the section where the retaining wall collapsed, the stone boundary wall is visible but looks to be in a state of disrepair. The report says the appearance indicates that the newer retaining wall had undermined the original boundary wall. And I think given its situation and the impact of the new wall, its probable the wall had been deteriorating for some time hidden from view. So, from what I can see I don't think the damage is typical of that caused by a storm, and that the storm conditions weren't the main cause of the damage as this was more likely from a gradual decline.

The reports says that the collapsed section is from the newer retaining wall. And adds "*it is surprising that it has lasted as long as it has.*" The wall has increased the retained height from one metre to three metres, and the construction of the new wall was "*very thin*" and "*inadequate*" for the three-metre level. The report also says the remaining section of the newer wall is bowed and has cracks. So again, I don't think the damage to this wall is typically storm damage. From the report the wall clearly wasn't fit for purpose as it was too "*thin*" and its design wasn't adequate. So, I don't think the storm conditions was the main cause of the damage to this wall.

I've also considered the rest of Mrs V's policy to understand if there were other relevant areas of the policy she could claim under for her collapsed wall and subsequent costs she may have incurred for the blockage of the footpath caused by the collapsing wall. I have considered flooding, but as I haven't seen any evidence of flooding, I don't think Aviva has been unreasonable by not considering it.

The policy covers for subsidence or heave of the land on which the buildings stand, or landslip. But this cover will only apply if this has also affected the home, which isn't the case here. So again, I don't think Aviva has acted unreasonably in not considering it.

I have checked the terms and conditions and there is a general exclusion to the policy which

means it applies to the whole policy.

Mrs V's policy says:

".... Your policy is intended to cover you against unforeseen events like fire or theft. It does not cover wear and tear or damage which happens gradually over a period of time. ..."

And goes on to provide areas that are prone to wear and tear, giving boundary walls as an example.

The policy also states:

"It is your responsibility to look after and regularly maintain your property"

Aviva declined Mrs V's storm damage claim saying that the cause of the damage was a gradual deterioration. And I think they have applied this exclusion term correctly as I don't think that storm damage was the main cause of the damage. But a mixture of a retaining wall that doesn't appear to be fit for purpose. And the boundary wall being undermined by the retaining wall over time, and not being regularly maintained.

I know Mrs V will be disappointed with my decision, but I don't think that Aviva has acted unfairly or unreasonably in applying the terms of her insurance policy. I know there remains a question about the ownership of the newer retaining wall and that Mrs V has sought clarification as to who has responsibility for it.

My final decision

I don't uphold this complaint.

Under the rules of the Financial Ombudsman Service, I'm required to ask Mrs V to accept or reject my decision before 16 June 2022.

Anne Scarr
Ombudsman